

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

SHADY BOLTON,

Plaintiff,

-against-

**THE CITY OF NEW YORK; OFFICER
JARVIS OBABANJO; OFFICER
EDWARD WEISENBURGER; SGT.
CHARLES D. MIELE,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates New York County
as the place of trial

To the above-named Defendants:

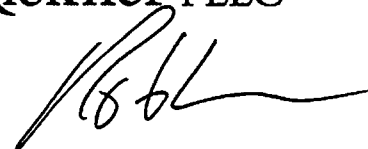
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
April 18, 2022

Rickner PLLC

By:



Rob Rickner

14 Wall Street Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

OFFICER JARVIS OBABANJO
OFFICER EDWARD WEISENBURGER
SGT. CHARLES D. MIELE
1 Police Plaza
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****SHADY BOLTON,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; OFFICER
JARVIS OBABANJO; OFFICER
EDWARD WEISENBURGER; SGT.
CHARLES D. MIELE,**

Defendants.

Index No.:

COMPLAINT

Plaintiff Shady Bolton, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth and Fourteenth Amendments to the Constitution of the United States, Plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2021PI010163.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on June 1, 2021.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff was at all times relevant to this action, a resident of New York County in the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Police Officer Jarvis Onabanjo (Shield No. 20933, Tax ID No. 959010) (hereinafter "Onabanjo") was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of

New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Officer Onabanjo is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Officer Onabanjo is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Police Officer Edward Weisenburger (Shield No. 18143, Tax ID No. 952338) (hereinafter “Weisenburger”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

16. Officer Weisenburger is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

17. Officer Weisenburger is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

18. Defendant Sgt. Charles D. Miele (Shield No. 4711, Tax ID No. 939037) (hereinafter “Miele”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

19. Officer Miele is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

20. Officer Miele is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

21. Onabanjo, Weisenburger, and Miele are referred to collectively as the “Individual Defendants.”

22. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

23. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

24. On January 16, 2021, Plaintiff was driving in the vicinity of 121st street and Park Avenue in Manhattan in his newly-purchased 2004 Nissan.

25. Plaintiff was pulled over by Officers Onabanjo and Weisenburger, who informed Plaintiff that he was stopped because there was no license plate on the back of the car.

26. But Plaintiff did, in fact, have a temporary plate affixed to the back window, as he had purchased the car approximately 36 hours before the traffic stop.

27. To assuage any concerns that the car was procured or was being driven unlawfully, Plaintiff offered to call the seller, who sold the car with the temporary plates, and informed Plaintiff that he had 30 days to replace them.

28. The officers would not let Plaintiff call anyone, and instead insisted that he step out of the car, and immediately arrested him.

29. Plaintiff asked multiple times why he was under arrest, but the arresting officer, Weisenburger, did not know the basis for the arrest. Plaintiff was eventually told that the officers believed that the temporary plate was fraudulent.

30. Plaintiff pled with the officers to allow him to call the previous owner of the vehicle to sort out the status of the license plate—or even have a friend pick him up from the scene and leave the car parked nearby—eliminating any need to detain him. He insisted repeatedly that he had no knowledge of the temporary plate’s origins (other than from the seller of the vehicle), and if the plates were illegal, it was Plaintiff who was a victim of fraud by the seller. But he would not be treated as a crime victim.

31. Plaintiff was audibly and visibly upset by the entire encounter. Once at the precinct, Plaintiff sat in the back of the patrol car pleading with the officers to allow him to prove his innocence. In a frustrated and heated response, Officer Weisenburger pushed Plaintiff’s legs inside the patrol car and closed the door in his face, stating that he would be brought inside when he was “ready to get out and be quiet.”

32. When the officers reopened the door, Plaintiff was in tears and terrified to get out of the vehicle. Weisenburger proceeded to threaten Plaintiff, stating if he did not get out of the patrol car, the officers would call ESU (the Emergency Service Unit of the NYPD) who would “rip [him] out of the car and wrap [him] up in a taco shell” and take him to a “psych ward” before returning him to the precinct.

33. Inside the precinct, Plaintiff continued protesting his unnecessary custodial arrest. Sergeant Miele, a supervisor, told Plaintiff that the officers brought him to the precinct “to make

it easier” for the Sgt., who wasn’t available in the field. Sgt. Miele further stated that he would allow Bolton could call the seller of the car and then release him. This was a lie.

34. All three officers, who were angry at Plaintiff’s vocal frustration and comments about the unnecessary of this custodial arrest (which could have been handled with a mere traffic ticket), proceeded to maliciously over-charge Plaintiff in retaliation for his protestations.

35. The Individual Defendants charged Plaintiff with one felony, two misdemeanors, two violations, and three infractions—including a charge of possession of marijuana less than 2 ounces, which was a nullity under New York law at the time of Plaintiff’s arrest.

36. The felony charge, forgery of a government document, requires that the person charged have actual knowledge that the document in question is fraudulent. The Individual Defendants knew that there was no evidence of this knowledge, but used the felony charge to unlawfully over-detain Plaintiff through to arraignment and punish him for vocalizing his anger and frustration with the entire ordeal.

37. The Individual Defendants then held Bolton for more than 24 hours before taking him before a judge—a per se violation of the New York State Constitution.

38. The charges were dismissed in Plaintiff’s favor on or about July 16, 2021.

THE INJURIES TO PLAINTIFF

39. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

40. The Individual Defendants’ actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff’s civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

41. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
RETALIATORY ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. The Individual Defendants initiated a custodial arrest and excessively over-charges Plaintiff in retaliation for Plaintiff's First Amendment right to voice his dissent and frustration with the actions taken by the Individual Defendants.

44. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the First Amendment to the United States Constitution, and the Individual Defendants are liable to Plaintiff for damages under 42 U.S.C. § 1983.

45. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

46. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

49. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

50. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

51. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

52. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

53. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

54. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**FOURTH CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

56. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

57. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

58. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

59. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FIFTH CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

61. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

62. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

63. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

64. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

66. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by the Individual Defendants.

67. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

68. Plaintiff was conscious of the confinement and did not consent to such confinement.

69. Plaintiff's arrest is *void ab initio* because Plaintiff was held without arraignment for more than 24 hours without justification.

70. Plaintiff's arrest is *void ab initio* because Plaintiff was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process without such detainment, in violation of New York Criminal Procedure Law § 150.20.

71. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

72. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

73. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

75. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

76. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

77. Qualified immunity is no defense to this claim.

78. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

79. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**EIGHTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

81. The Individual Defendants initiated a prosecution against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

82. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

83. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

84. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

86. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

87. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

88. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

89. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**TENTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION**

**AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

90. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

91. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

92. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, .

93. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

94. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

95. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;

- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 18, 2022

Rickner PLLC

By:


Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

OFFICER JARVIS OBABANJO
OFFICER EDWARD WEISENBURGER
SGT. CHARLES D. MIELE